

HOUSE No. 5003

The Commonwealth of Massachusetts

INITIATIVE PETITION OF DANIELLE SUSAN ALLEN AND OTHERS.

OFFICE OF THE SECRETARY.

BOSTON, January 7, 2026.

Timothy Carroll
Clerk of the House of Representatives
State House
Boston, Massachusetts 02133

Sir: — I herewith transmit to you, in accordance with the requirements of Article XLVIII of the Amendments to the Constitution “An Initiative Petition for a Law to Implement All-Party State Primaries,” signed by ten qualified voters and filed with this department on or before December 3, 2025, together with additional signatures of qualified voters in the number of 79,032, being a sufficient number to comply with the provisions of said Article.

Sincerely,

WILLIAM FRANCIS GALVIN
Secretary of the Commonwealth.

AN INITIATIVE PETITION.

Pursuant to Article XLVIII of the Amendments to the Constitution of the Commonwealth, as amended, the undersigned qualified voters of the Commonwealth, ten in number at least, hereby petition for the enactment into law of the following measure:

HOUSE No. 5003

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to implement all-party state primaries.

Be it enacted by the People, and by their authority, as follows:

1 SECTION 1. Section 1 of Chapter 50 of the General Laws is hereby amended by
2 amending the definition of “Political party” therein by inserting after the phrase “to a party
3 which at” in the first sentence thereof the phrase “the latest state primary held prior to”, and by
4 striking the second sentence thereof in its entirety.

5 SECTION 2. Chapter 50 of the General laws is hereby amended by inserting after
6 Section 2 the following Section 2A:-

7 Section 2A. In state primaries held in accordance with sections forty-one to fifty-three A,
8 inclusive, of chapter fifty-three, the two persons receiving the highest number of votes for an
9 office shall be deemed nominated for election to such office and shall be the only persons whose
10 names shall be printed on the ballot for such office at the next proceeding state election.

11 SECTION 3. Section 2 of Chapter 53 of the General Laws is hereby amended by
12 inserting the phrase “Except as provided in section two-A of chapter fifty,” at the beginning of
13 the second sentence thereof.

SECTION 4. Section 6 of Chapter 53 of the General Laws is hereby amended by striking from said Section 6 the first two sentences of the first paragraph thereof, and the second and third paragraphs thereof in their entirety.

SECTION 5. Section 8 of Chapter 53 of the General Laws is hereby amended by striking from said Section 8 the first three sentences of the first paragraph thereof, and the first and fourth sentences of the second paragraph thereof.

SECTION 6. Section 10 of Chapter 53 of the General Laws is hereby amended by striking the first four sentences from the first paragraph of said Section 10 and inserting in place thereof the following:-

All certificates of nomination and nomination papers of candidates for offices for which state primaries are held in accordance with section forty-one, shall be filed in accordance with section forty-six.

SECTION 7. Section 14 of Chapter 53 of the General Laws is hereby amended by inserting after the word “otherwise” in the first sentence thereof the following:-

shall first be filled by the candidate who received the next highest number of votes for such office in the applicable state primary, and if there is no such candidate,

SECTION 8. Section 33 of Chapter 53 of the General Laws is hereby amended by striking said Section 33 and inserting in place thereof the following:-

Section 33. At least three facsimile copies of the ballot shall be provided for each polling place as specimen ballots.

SECTION 9. Section 34 of Chapter 53 of the General Laws is hereby amended by striking from the first sentence thereof the phrase “Official ballot of the (here shall follow the party name)” and inserting in place thereof the phrase “Official primary ballot”, and by inserting following the first paragraph thereof the following:-

Against the name of each such candidate there shall be printed the political party or designation reflected on their nomination papers, as provided in section forty-five and, upon the joint request of the general or executive committee representing a political party or designation and such candidate, the words "Endorsed by the [name of political party or designation]". In the latter case, the request must be filed with the state secretary not less than fifteen days prior to the latest date by which ballots must be printed.

SECTION 10. Section 37 of Chapter 53 of the General Laws is hereby amended by striking from the first paragraph thereof the first sentence in its entirety, the phrases “Except as provided by section thirty-seven A,” and “, and, if the party enrolment of such voter is shown on the voting list, the name of the party in which he is enrolled” from the second sentence thereof, the third sentence in its entirety, the phrase “of the political party so requested” from the fourth sentence thereof, and the fifth sentence in its entirety, and from the second paragraph thereof the second and third sentences in their entirety.

SECTION 11. Section 41 of Chapter 53 of the General Laws is hereby amended by striking the phrase “of political parties” from the first sentence thereof.

SECTION 12. Section 44 of Chapter 53 of the General Laws is hereby amended by striking the last sentence thereof and inserting in place thereof the following:-

In the case of the offices of governor and lieutenant governor, only nomination papers containing the names and addresses of candidates for both offices shall be valid.

SECTION 13. Section 45 of Chapter 53 of the General Laws is hereby amended by striking the phrase “the political party whose nomination he seeks” in the first sentence thereof, and inserting in place thereof the phrase “the political party or designation that he represents, if any, as determined by his voter registration”, and by striking the fourth paragraph thereof and inserting in place thereof the following:-

No nomination paper for use in the nomination of candidates to be voted for at state primaries shall contain the name of more than one candidate, except that nomination papers for candidates for governor and lieutenant governor shall contain the name of one candidate for each office. Such nomination papers for candidates for governor and lieutenant governor shall contain provision for the names and addresses of members of a committee of five registered voters who shall fill any vacancy caused by death, withdrawal, ineligibility or disqualification of either candidate.

SECTION 14. Section 46 of Chapter 53 of the General Laws is hereby amended by striking the phrase “and who are not enrolled in any other party than that whose nomination the candidate seeks,” from the fifth sentence thereof.

SECTION 15. Section 53 of Chapter 53 of the General Laws is hereby amended by striking said Section 53 and inserting in place thereof the following:-

Section 53. In case of a tie vote where the number of persons receiving equal votes exceeds the number of nominations available, the state secretary shall forthwith summon the candidates who

76 have received the tie votes to appear before them at a time and place to be designated by them.
77 The state secretary shall at that time and place break the tie by lot.

78 SECTION 16. Section 33 of Chapter 54 of the General Laws is hereby amended by
79 striking the phrase “and elections and of voting for candidates of more than one political party at
80 a primary” from the first paragraph thereof, striking the final sentence of the second paragraph
81 thereof, and striking the phrase “or of voting for candidates of more than one political party at a
82 primary” from the third paragraph thereof,

83 SECTION 17. Section 43A of Chapter 54 of the General Laws is hereby amended by
84 striking the phrase “at a state election” from the first sentence thereof.

85 SECTION 18. This act shall take effect on January 1, 2028.

86 SECTION 19. The provisions of this act are severable, and if any clause, sentence,
87 paragraph or section of this law or an application thereof shall be adjudged by any court of
88 competent jurisdiction to be invalid, such judgment shall not affect, impair, or invalidate the
89 remainder thereof but shall be confined in its operation the clause, sentence, paragraph, section
90 or application adjudged invalid and such clause, sentence, paragraph, section or application shall
91 be reformed and construed so that it would be valid to the maximum extent permitted.

FIRST TEN SIGNERS

<u>NAME</u>	<u>RESIDENCE</u>	<u>CITY OR TOWN</u>
Danielle Susan Allen	102 Otis Street, #2	Cambridge
Kerry Murphy Healey	10 Curtis Point	Beverly
Philip John Edmundson	55 Cottage Street	Hingham
Nathan James Lockwood	91 Main Street	Lunenburg
Jennifer Ann Nassour	12 Mountview Road	Wellesley
Elizabeth S. Bradt	22 Larchmont Road	Salem
Richard Jeffrey Lyman	41 Turkey Shore Road	Ipswich
Vivian Birchall	16 Wampus Avenue, #14	Acton
Kate Kavanagh	409 Old Bedford Road	Concord
Kevin Pitney Johnson	131 Windsor Road	Newton

CERTIFICATE OF THE ATTORNEY GENERAL.

September 3, 2025.

Honorable William Francis Galvin
Secretary of the Commonwealth
One Ashburton Place, Room 1705
Boston, Massachusetts 02108

Re: Initiative Petition No. 25-12: Initiative Petition for a Law to Implement
All-Party State Primaries – Version B

Dear Secretary Galvin:

In accordance with the provisions of Article 48 of the Amendments to the Massachusetts Constitution, I have reviewed the above-referenced initiative petition, which was submitted to me on or before the first Wednesday of August of this year.

I hereby certify that this measure is in proper form for submission to the people; that the measure is not, either affirmatively or negatively, substantially the same as any measure which has been qualified for submission or submitted to the people at either of the two preceding biennial state elections; and that it contains only subjects that are related or are mutually dependent and which are not excluded from the initiative process pursuant to Article 48, the Initiative, Part 2, Section 2.

In accordance with Article 48, I enclose a fair, concise summary of the measure.

Sincerely,

ANDREA JOY CAMPBELL
Attorney General.

SUMMARY OF 25-12

This proposed law would eliminate political party primaries for state elections and instead establish a system where there would be a single, all-party primary in which all candidates, regardless of their party affiliation, would be listed on one ballot, and voters could vote for any candidate on the ballot. The two candidates receiving the most votes in the primary would advance to the general election ballot.

This proposed law would require candidates for governor and lieutenant governor to run and be listed jointly on the ballot in the primary.

This proposed law would provide political party status to any group whose candidates for any statewide office received at least 3% of the ballots cast in the state primary.